

**HONOURING THE TRUTH, RECONCILING FOR THE FUTURE:
SUMMARY OF THE FINAL REPORT OF THE TRUTH AND RECONCILIATION
COMMISSION OF CANADA (2015) (EXCERPTS)**

*The full summary report is available online:
http://www.trc.ca/assets/pdf/Honouring_the_Truth_Reconciling_for_the_Future_July_23_2015.pdf*

[...]

Community programs

In 1996, Parliament legislated principles that would allow offenders who might otherwise be imprisoned to serve their sentences in the community. A centrepiece of these reforms was Section 718.2(e) of the *Criminal Code*, which instructs judges that “all available sanctions other than imprisonment that are reasonable in the circumstances should be considered for all offenders, with particular attention to the circumstances of aboriginal offenders.”¹³⁵

In 1999, in *R. v. Gladue*, the Supreme Court stated that Section 718.2(e) of the *Criminal Code* was enacted in response to alarming evidence that Aboriginal peoples were incarcerated disproportionately to non-Aboriginal people in Canada.¹³⁶ The court stressed that this section is a remedial provision, enacted specifically to oblige the judiciary to make special efforts to find reasonable alternatives to imprisonment for Aboriginal offenders and to take into account the background and systemic factors that bring Aboriginal people into contact with the justice system.¹³⁷

In some jurisdictions, the *Gladue* decision has resulted in the production of more extensive pre-sentence, or “Gladue,” reports that detail the background and contextual circumstances of Aboriginal offenders. These reports help inform judges’ sentencing decisions and are meant to encourage alternative options to incarceration. However, bringing these reports to court has not been without difficulty and controversy. Some jurisdictions provide few resources for the intensive, specialized, and culturally sensitive work that is necessary to produce an adequate Gladue report, despite the clear mandate given by the Supreme Court.¹³⁸

In 2012, the Supreme Court revisited and reaffirmed *Gladue*. In *R. v. Ipeelee*, the Supreme Court pointed out that some judges had erred in their application of *Gladue* by concluding that it did not apply to serious offences or that it required an offender to demonstrate a causal connection between the commission of the crime and the legacy of residential schools or other background or contextual factors that help explain why an Aboriginal offender is before the courts.¹³⁹

Even if excellent Gladue reports were prepared from coast to coast, they would still fail to make a difference in the amount of Aboriginal overrepresentation in the prison system without the addition of realistic alternatives to imprisonment, including adequate resources for intensive community programs that can respond to the conditions that caused Aboriginal offending.

Call to Action:

31) We call upon the federal, provincial, and territorial governments to provide sufficient and stable funding to implement and evaluate community sanctions that will provide realistic alternatives to imprisonment for Aboriginal offenders and respond to the underlying causes of offending.

A failure to provide sufficient and stable resources for the community and treatment programs that are necessary to implement *Gladue* and *Ipeelee* helps explain why those decisions have not slowed increasing Aboriginal overrepresentation in prison. In addition to these significant challenges, there are now new barriers to implementing effective and just alternative sentences for Aboriginal offenders.

135. *Criminal Code*, 1985, chapter C-46, section 718.2(e).

136. *R. v. Gladue*, 1999 CanLII 679 (SCC), para. 58–65.

137. *R. v. Gladue*, 1999 CanLII 679 (SCC), para. 64.

138. For a description of the process of preparing Gladue reports, see: Istvanffy, *Gladue Primer*.

139. *R. v. Ipeelee*, 2012 SCC 13 (CanLII), para. 81, 84.